IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Claim No. HT-2025-000318

B E T W E E N:

HARROW PRECISION ENGINEERING LIMITED

Claimant

- and -

MELBOURNE SEALTECH LIMITED

Defendant

PARTICULARS OF CLAIM

[Issued and sealed — 11 June 2025]

The parties

1. The Claimant is a company incorporated in England and Wales which designs and manufactures industrial centrifugal pumps, including its Series HP-400 range of end-suction water pumps.

2. The Defendant is a company incorporated in England and Wales which manufactures and supplies mechanical seals for rotating equipment.

The Agreement

3. By a written Supply Agreement dated 9 May 2023 (the "Agreement"), the Defendant agreed to manufacture and supply to the Claimant Type MS-72 mechanical cartridge seals (the "Seals") for incorporation into the Claimant's Series HP-400 pumps, at a unit price of £214, against the Claimant's call-off purchase orders.

4. It was an express term (clause 8.1) that the Seals would be free from defects in materials and workmanship, would comply with drawing HP-400/SEAL Rev C (including an antimony-impregnated carbon-graphite seal face of grade CG-218 and a lapped face flatness within two helium light bands), and would be fit for continuous water duty up to 90°C and 3,000 rpm with a design service life of not less than 25,000 running hours.

5. Further or alternatively, there were implied into the Agreement the terms as to satisfactory quality and fitness for purpose under sections 14(2) and 14(3) of the Sale of Goods Act 1979.

Delivery and breach

6. Between May 2023 and August 2024 the Defendant delivered 1,860 Seals. In breach of clause 8.1 and of the implied terms, the seal faces were manufactured from a carbon-graphite grade with materially lower antimony impregnation than grade CG-218, and the lapped faces were not flat to within two helium light bands, a substantial proportion of the tested faces exceeding six light bands.

7. In consequence, from September 2024 the Seals failed prematurely in service, typically at fewer than 3,000 running hours and in a number of cases at fewer than 1,500 running hours, by rapid wear and thermal cracking of the primary seal face, loss of face flatness, leakage and consequent pump failure.

8. The Claimant relies on the report of Trentham Tribology Laboratory dated 12 September 2025, which concludes that the seal-face material did not meet grade CG-218, that the flatness of the tested faces was outside specification, and that these deficiencies caused the premature failures. The defects were consistent across the delivered batches and are properly to be inferred as arising from a systemic failure in the Defendant's manufacturing or quality-control process.

Loss and damage

9. By reason of the Defendant's breaches the Claimant has suffered loss and damage in the total sum of **£3,485,000**, particularised in the Schedule of Loss and summarised below.

Head of loss	Amount (£)
Replacement seals and remedial rebuild of affected pumps	1,240,000
Credits, refunds and warranty payments to customers	742,000
Field recall and on-site labour	468,000
Loss of profit – Pennland Water framework	985,000
Investigation and expert costs	50,000
Total	**3,485,000**

10. By a letter dated 20 January 2025, Pennland Water plc terminated its five-year pump supply framework with the Claimant, citing the reliability failures of HP-400 pumps. The Claimant's loss of profit over the remaining term is £985,000.

11. The Claimant claims interest pursuant to section 35A of the Senior Courts Act 1981.

AND the Claimant claims: (1) Damages in the sum of £3,485,000; (2) Interest under s.35A Senior Courts Act 1981; (3) Costs; and (4) Further or other relief.

NATHANIEL OKONJO

Eldon Chambers

Statement of Truth

The Claimant believes that the facts stated in these Particulars of Claim are true. I am duly authorised by the Claimant to sign this statement.

Signed: *G. Harrow* Name: Gavin Harrow Position: Managing Director, Harrow Precision Engineering Limited Dated: 11 June 2025

Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ — Solicitors for the Claimant